



Employment Contract

Contract Reference No.:

Date of Agreement:

Between:

K ENERGY SAVE CO., LTD., a company incorporated under the laws of Thailand, with its registered office located at, (hereinafter referred to as the “Employer”).

and:

....., holder of Identification Card No.,
in the position of Sales Representative (EMP) residing at.....,
(hereinafter referred to as the “Employee”).

The Employer and the Employee (collectively referred to as the “Parties”) hereby agree to the terms and conditions set forth below:

ARTICLE 1: POSITION AND SCOPE OF RESPONSIBILITIES

- 1.1 The Employer hereby appoints the Employee to the position of Sales Representative, and the Employee hereby accepts such appointment.
- 1.2 The Employee shall be responsible for, including but not limited to, promoting and selling the Employer’s products, conducting site inspections, supervising installations, and providing after-sales services in accordance with the Employer’s standards.
- 1.3 The Employee shall perform duties faithfully, diligently, and in compliance with all lawful instructions, policies, and regulations of the Employer.

ARTICLE 2: REMUNERATION AND SALES COMMISSION

- 2.1 The Employer shall pay the Employee a monthly base salary of THB.

K Energy Save Co., Ltd.

84 Chaloe Phrakiat Rama 9 Soi 34 Nong Bon, Prawet, Bangkok 10250 Thailand

+66 2 0808916

2.2 The Employee shall be entitled to a sales commission calculated at the rate of% of Net Sales (excluding VAT), subject to the terms and conditions as may be determined by the Employer from time to time.

2.3 All payments shall be subject to applicable withholding taxes and statutory deductions in accordance with Thai law.

ARTICLE 3: WORKING HOURS AND LOCATION

3.1 Regular working hours shall be, from to

3.2 The Employer reserves the right to assign the Employee to perform duties at various locations or provinces as deemed necessary for business operations.

ARTICLE 4: TOOLS, EQUIPMENT, AND LIABILITY

4.1 The Employer shall provide the Employee with necessary tools, including the Testing Kit, precision meters, and marketing materials, at no cost to the Employee.

4.2 The Employee shall maintain and protect all Company property with due care. Any loss or damage caused by the Employee's gross negligence shall result in the Employee's liability for the actual replacement or repair cost.

ARTICLE 5: QUALITY CONTROL AND BRAND INTEGRITY

5.1 The Employee shall not make false or exaggerated claims regarding product specifications. Any act that causes damage to the Employer's reputation shall be considered a severe disciplinary breach.

5.2 The Employer reserves the right to conduct random site inspections. The Employee must rectify any deficiencies immediately upon instruction.

5.3 The Employee shall use the K Energy Save logo and trademarks only in the authorized formats and shall not modify them in any way that may negatively impact the brand image.

ARTICLE 6: TRAINING AND CERTIFICATION

- 6.1 The Employee is required to undergo training and pass the competency test to receive a "Certified Sales Representative" status before commencing duties.
- 6.2 All training costs shall be borne by the Employer.

ARTICLE 7: CONFIDENTIALITY AND TRADE SECRETS

- 7.1 All customer lists, electricity consumption data, and energy-saving techniques shall constitute the exclusive trade secrets of the Employer.
- 7.2 The Employee shall not disclose or use such confidential information for personal gain or transfer it to any third party or competitor during or after the term of employment.
- 7.3 All work products, materials, reports, client data, and intellectual property created or developed by the Employee during the course of employment shall remain the sole and exclusive property of the Employer.

ARTICLE 8: PROBATION AND TERMINATION

- 8.1 The Employee is subject to a 119day probationary period. The Employer reserves the right to terminate employment if the Employee's performance is deemed unsatisfactory.
- 8.2 The Employer may terminate employment immediately without severance pay or prior notice for any gross misconduct pursuant to Section 119 of the Labor Protection Act, including but not limited to:
- (a) Dishonesty or intentional criminal offense against the Sales Employer;
 - (b) Intentionally causing damage to the Sales Employer;
 - (c) Abandonment of duty for three consecutive working days without reasonable cause;
 - (d) Violation of work rules after receiving a written warning (except in severe cases where no warning is required).

ARTICLE 9: NON-COMPETE CLAUSE

9.1 Upon termination of employment, the Employee agrees not to join a competitor or engage in any business that competes directly with the Employer for a period of one year within the geographical area in which the Employee previously operated.

K Energy Save Co., Ltd

..... Employer
(.....)

..... Employee
(.....)

..... Witness
(.....)

..... Witness
(.....)

K Energy Save Co., Ltd.

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